



Republic of the Philippines  
Province of Sorsogon  
**MUNICIPALITY OF PRIETO DIAZ**  
LGU TIN: 000794065  
Official Email Add: [sbprietodiaz@gmail.com](mailto:sbprietodiaz@gmail.com)



### **Office of the Sangguniang Bayan**

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11<sup>TH</sup> SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 27, 2025 AT THE BARANGAY HALL OF BRILLANTE, PRIETO DIAZ, SORSOGON

**PRESENT:**

|                              |                                        |
|------------------------------|----------------------------------------|
| Hon. Avon D. Domalaon, MPA   | Municipal Vice Mayor/Presiding Officer |
| Hon. Jo Madel D. Domalaon    | S. B. Member                           |
| Hon. Bienvenido D. Ayo, Jr.  | -do-                                   |
| Hon. Luis Lee E. Espeña, Jr. | -do-                                   |
| Hon. Alice D. Emano          | -do-                                   |
| Hon. Juan D. Ebid            | -do-                                   |
| Hon. Albert D. Destura       | -do-                                   |
| Hon. Antonio J. Emano, Jr.   | LnB Pres. /S. B. Member                |
| Hon. Rene Joseph D. Domasian | SKMF Pres./S.B. Member                 |

**ABSENT:**

|                         |                        |
|-------------------------|------------------------|
| Hon. Joseph H. Yap, Jr. | S. B. Member/ on leave |
| Hon. Rodolfo E. Diolata | -do-                   |

### **RESOLUTION NO. 023-2025**

Introduced by Hon. Alice Emano

**A RESOLUTION AUTHORIZING HON. ROMEO D. DOMASIAN, MUNICIPAL MAYOR, TO ENTER INTO A MEMORANDUM OF AGREEMENT (MOA) WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD) FIELD OFFICE NO. 5 REPRESENTED BY ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SOCIAL PENSION PROGRAM FOR INDIGENT SENIOR CITIZENS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON**

WHEREAS, Social Pension for Indigent Senior Citizens (SocPen) is a government assistance to augment the daily subsistence and other medical needs of qualified indigent and validated senior citizens amounting to and not less than one thousand pesos (P 1000.00) per month, as mandated by RA 11916;

WHEREAS, the DSWD FO V shall, among others, transfer funds to the LGU and facilitate the preparation and approval of payroll and list of beneficiaries;

WHEREAS, the LGU of Prieto Diaz shall, among others, submit monthly updates of the list of eligible senior citizens to the DSWD Field Office No V;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Albert Destura and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize Hon. Romeo D. Domasian, Municipal Mayor, to enter into a Memorandum of Agreement (MOA) with the Department of Social Welfare And Development (DSWD) – Field Office No. 5 represented by its Regional Director, Norman S. Laurio, for the implementation of Social Pension Program For Indigent Senior Citizens in the municipality of Prieto Diaz, Sorsogon;

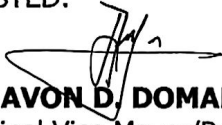
FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Ms. Betty Arines, MSWDO; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.

  
**BERNADETTE R. ESPEÑA-YAO**  
Secretary to the Sangguniang Bayan

ATTESTED:

  
**Hon. AVON D. DOMALAON, MPA**  
Municipal Vice Mayor/Presiding Officer

## **MEMORANDUM OF AGREEMENT**

### **KNOW ALL PERSONS BY THESE PRESENTS:**

This **MEMORANDUM OF AGREEMENT (MOA)** made and executed on this \_\_\_\_\_, \_\_\_\_\_ 2025, by and between:

The **DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD)**, a national government agency created and existing by virtue of the laws of the Republic of the Philippines, through **DSWD FIELD OFFICE (FO) V** represented by **REGIONAL DIRECTOR NORMAN S. LAURIO** and hereinafter referred to as the "**DSWD-FO V**".

– And –

The **MUNICIPAL GOVERNMENT OF PRIETO DIAZ**, a Local Government Unit (LGU) with an official address at Perlas, Prieto Diaz, Sorsogon and represented herein by Municipal Mayor **ROMEO D. DOMASIAN**, hereinafter referred to as the "**LGU of PRIETO DIAZ**".

### **WITNESS THAT:**

**WHEREAS**, DSWD is the primary government agency mandated to develop, administer, and implement comprehensive social welfare and protection programs and poverty-reduction solutions designed to uplift the living conditions and empower the poor, vulnerable and disadvantaged children, youth, women, older persons, persons with disabilities, families or person in crisis or at-risk, and communities needing assistance through programs and services implementation with or through Local Government Units (LGUs), People's Organizations (POs), Government Organizations (GOs) and other members of civic society;

**WHEREAS**, under Chapter II, Section 17 (b) (2) (iv) Local Government Code of the Philippines (Republic Act No. 7160) mandated the Municipality/City to provide Social Welfare Services which include programs and projects on child and youth welfare, family and community welfare, women's welfare, welfare of the elderly and disabled persons; community-based rehabilitation programs for vagrants, beggars, street children, scavengers, juvenile delinquents, and victims of drug abuse; livelihood and other pro-poor projects; nutrition services; and family planning services;

**WHEREAS**, WHEREAS, Under Section 2 (h) (1) of Republic Act (RA) No. 11916 or the "An Act Increasing the Social Pension of Indigent Senior Citizens and Appropriating Funds therefor, amending for the Purpose Republic Act No. 7432", indigent senior citizens shall be entitled to a monthly stipend amounting to not less than One Thousand pesos (Php1000.00) to augment the daily subsistence and other medical needs of senior citizens;

**WHEREAS**, Republic Act (R.A.) No. 12116 or the General Appropriation Act for the Fiscal Year 2025 (GAA FY 2025) "the amount of **Php 23,799,000.00** appropriated herein shall be used for the monthly stipend amounting to One Thousand Pesos of the identified senior citizen beneficiaries, as determined by the DSWD;

**WHEREAS**, DSWD as the lead agency in social welfare and development, has implemented the Social Pension for Indigent Senior Citizens (SPISC) since 2011 through DSWD Field Offices (FOs) in all regions;

**WHEREAS**, Section VIII (D) of DSWD Memorandum Circular (M.C.) 006 series of 2024 or the Enhanced Omnibus Guidelines in the Program Implementation of the Social Pension for Indigent Senior Citizens, allows fund transfer to LGUs as one of the payout modalities in the implementation of delivery and distribution of the stipend to the SPISC beneficiaries;

**WHEREAS**, the DSWD - FO V identified fund transfer to LGUs as an efficient and effective mechanism in implementing the social pension for indigent senior citizen program in their respective territorial jurisdiction;

**WHEREAS**, Section 22 of R.A. No. 10173 or the Data Privacy Act of 2012 provides that all sensitive personal information maintained by the government, its agencies and instrumentalities shall be secured, as far as practicable, with the use of the most appropriate standard recognized by the information and communications technology industry, and as recommended by the National Privacy Commission (NPC), and that the head of each government agency or instrumentality shall be responsible for complying with the security requirements provided under this law;

**WHEREAS**, For the past years, the LGU of **PRIETO DIAZ** has a good track record in implementing efficient mechanisms in delivering the cash payout to the social pension beneficiaries down to the barangay level.

**NOW, THEREFORE**, for and in consideration of the foregoing premises, hereinafter set forth, the PARTIES hereby agree to undertake the program under the following terms and conditions:

## **I. ROLES AND RESPONSIBILITIES OF THE PARTIES**

### **A. The DSWD - FO V, in connection with the distribution of social pension and the liquidation of transferred funds, shall:**

1. Coordinate and conduct meetings/orientation to the LGU of **PRIETO DIAZ** with regards to the SPISC Program to ensure adequate understanding of the program before implementation;
2. Facilitate the signing of the Memorandum of Agreement (MOA) to the LGU of **PRIETO DIAZ**;
3. Provide technical assistance to the LGU of **PRIETO DIAZ** in the preparation of the Project Proposal to be submitted to the DSWD FO V;
4. Facilitate the preparation and approval of the payroll and list of beneficiaries;
5. Prepare the Certificate of Eligibility of a list of eligible social pension beneficiaries to receive a social pension for every quarter for Fiscal Year (FY) 2025, duly approved by the Regional Director as a basis in the payroll preparation;

6. Transfer the full annual amount of stipend corresponding to the number of beneficiaries approved by the DSWD-FO V to the LGU of **PRIETO DIAZ** in accordance with Commission on Audit (COA) Circular No. 94-013, dated December 13, 1994, Treasury Circular No. (TSN) 02-2022 dated May 31, 2022 as to the Inter Agency Transfer of Funds (IATF), and other applicable accounting and auditing rules observed by the Government, specifically:
  - 6.1. Obligate the allotment for the program to be implemented based on the advice of allotment and/or memorandum of agreement or project proposal;
  - 6.2. Facilitate transfer of funds through List of Due and Demandable Accounts Payable-Advice to Debit Account (LDDAP-ADA) and provide the validated LDDAP-ADA to the concerned LGU with Landbank of the Philippines (LBP) account or issue check for non-LBP account, as applicable; checks shall be claimed by the City/Municipal Treasurer or authorized representative;
  - 6.3. Maintain a subsidiary ledger of the cash transferred about the project.
7. Strictly monitor the distribution of the stipend, disbursement, and utilization of funds by the LGU of **PRIETO DIAZ** during the actual conduct of pay-out;
8. Install grievance mechanism to address and document issues, and, concerns during pay-out in close coordination with the LGU of **PRIETO DIAZ**;
9. Mandatorily require the LGU of **PRIETO DIAZ** to submit the liquidation report of the transfer of funds based on the timeline provided duly received by their COA auditor with the following attachment:
  - 9.1. Certified true Copy of signed payroll;
  - 9.2. Report of Checks (ROC) issued, Report of Disbursement (ROD), and Fund Utilization Report (FUR) duly certified and signed by the City/Municipal Accountant and approved by the City/Municipal Mayor duly received by the City/Municipal COA Auditor; and
  - 9.3. Copy of Official receipt for any refund to DSWD-V of unutilized balance

However, in the case of deficiencies noted in the post Audit of the liquidation report, the DSWD-V shall make necessary adjustments in the books of accounts based on the Statement of Audit Suspensions, Disallowances and Charges (SASDC) issued by the LGU Auditor;
10. Conduct revalidation through home visitation to the list of beneficiaries who are subject to delisting every after submission of the liquidation report by the LGU of **PRIETO DIAZ**. Likewise, the DSWD-FO shall validate the identified replacement beneficiaries before issuing the Certificate of Eligibility for the succeeding quarter.
11. Regularly update database of social pension beneficiaries per submitted list of paid beneficiaries based on the payroll, with corresponding attachment submitted by LGU of **PRIETO DIAZ**;
12. Identify replacements for delisted beneficiaries using the clean list of waitlisted senior citizens in the DSWD FO V database;
13. Provide technical assistance through meetings/consultations with LGU staff relative to issues and concerns regarding the social pension implementation as the need arises;



14. Reserve the right to withhold fund release to LGU of **PRIETO DIAZ** for the following reasons:

- a) Unauthorized delay or deviation to the approved Project Proposal of the program to be issued by the DSWD-FO;
- b) Non-compliance with the reportorial and liquidation requirements;
- c) Refusal to allow DSWD-FO V representative to inspect and audit the progress of program implementation;
- d) Failure to produce financial records upon demand by the DSWD- FO V; or
- e) Any analogous situation that affects the timely and efficient implementation of the program.

15. Provide a certificate of no unliquidated funds to LGU of **PRIETO DIAZ** after full compliance with the liquidation report as per existing guidelines.

16. Conduct monitoring on the utilization of the social pension stipend either through onsite (during payout) or offsite (house-to-house) targeting at least 80% of the LGU's total target; and

17. Refer beneficiaries or their family members to the LGU needing assistance as determined during the conduct of stipend utilization monitoring.

**B. The LGU of PRIETO DIAZ, in connection with the distribution of the social pension stipend and the liquidation of transferred funds, shall:**

- 1. Submit a Project Proposal that includes other activities along with the release of a social pension stipend;
- 2. Claim the check from the DSWD-FO V and take full responsibility and accountability in the proper disposition/disbursement of the funds transfer per existing accounting and auditing rules and regulations according to the COA Circular No. 94-013, dated December 13, 1994, TSN 02-2022 dated May 31, 2022 as to the IATF, and other applicable accounting and auditing manuals used by the Government, specifically:
  - 2.1. Issue an official receipt corresponding to the amount to be received from the DSWD-FO V;
  - 2.2. Deposit the amount with its authorized depository bank;
  - 2.3. Keep separate subsidiary records for the trust liability whether or not a separate bank account is maintained.
- 3. Submit and update the list of eligible senior citizens to the DSWD Field Office V.
- 4. Schedule the payout and venue duly approved by the City/Municipal Mayor and, inform the Regional Social Pension Unit (RSPU) of DSWD-FO V fifteen (15) calendar days prior to the actual pay-out;
- 5. Mobilize the Senior Citizen Organizations (SCO) and Barangay Officials in the locality to assist in the information dissemination of the schedule and venue of the Social Pension Pay-out;

6. Facilitate the release of the stipend of the Social Pension beneficiaries monthly regardless of the delivery scheme provided under DSWD M.C. No. 06, series of 2024. PROVIDED HOWEVER, the conduct of the monthly release of the stipend may not be undertaken under the following circumstances, subject to the validation of the FO:

- 6.1. Majority of the beneficiaries are residing in Geographically Isolated and Disadvantaged Areas (GIDA);
- 6.2. The province/city/municipality is declared under a state of calamity or natural or human-induced crises such as armed conflict; and
- 6.3. Other unavoidable and uncontrollable circumstances and situations.

If monthly release of stipend is not feasible, the allowed modes of payment shall only include **bi-monthly and quarterly** releases.

- 7. Act on the grievances/complaints from individuals and other sources in close coordination with the RSPU Staff of DSWD-FO V;
- 8. Submit the liquidation report based on the following timeline:

| Pay-out schedule    | Timeline of Submission of Liquidation Reports | % of liquidated funds vs. funds transferred |
|---------------------|-----------------------------------------------|---------------------------------------------|
| 1st and 2nd quarter | Every June of the year                        | 50%                                         |
| 3rd quarter         | Every September of the year                   | 25%                                         |
| 4th quarter         | Every December of the year                    | 25%                                         |

The attachments to the liquidation include the following:

- 8.1. Statement of Receipt and Disbursement duly received by the City/Municipal Auditor;
- 8.2. List of Paid and Unpaid Beneficiaries certified by the City/Municipal Accountant and duly approved by the Mayor;
- 8.3. A certified true copy of the payroll together with the documentary requirements;
- 8.4. Other supporting documents that may be required by the DSWD, subject to existing auditing and accounting rules and regulations.

At the end of the year, the LGU shall refund the unexpended balance of the amount transferred.

- 9. Allow DSWD-FO V authorized persons/team to audit all financial records kept by the LGU of **PRIETO DIAZ** related to the program implementation for monitoring and record-keeping purposes, or in compliance with government auditing rules and regulations;
- 10. Provide logistical support such as: Medical team, Security, Tables and Chairs, among others as agreed with the DSWD-FO V; and
- 11. Provide needed assistance to the beneficiaries being referred by DSWD.

## II. DATA PRIVACY COMPLIANCE

DSWD-FO V and LGU of PRIETO DIAZ shall ensure the confidentiality and integrity of personal information of the indigent senior citizens and shall be observed in strict compliance with the provisions of Republic Act No. 10173 or the Data Privacy Act of 2012, and its Implementing Rules and Regulations.

Specifically, **DSWD-FO V shall:**

- A) Process and transfer encrypted Social Pension Database limited to personal information of the Social Pension Beneficiaries such as Full name, birthdate, and complete address and the amount of stipend to be received by the beneficiaries for the sole purpose of implementing the SPISC Program; Provided that only the LGU of PRIETO DIAZ, through its authorized staff can use password to access the Social Pension Database.

Furthermore, **LGU of PRIETO DIAZ shall:**

- A) Identify and designate authorized person/s within its organization to receive the social pension database from DSWD-FO V;
- B) Commits to observe the strictest confidentiality concerning the personal data it shall collect, process, or access to in the performance of its duties and functions, and refrain from disclosing them to any other natural or juridical person, including among its workers and other staff, not expressly authorized to access the social pension database;
- C) Agrees that it only use and access information available to it in the course of its duties, and not to engage in any activity that conflicts with the interest of the DSWD-FO V, nor convey, sell or use any access to information available to it, and to provide information to others engaged in any activity that conflicts with the interest of the DSWD-FO V;
- B) Access, copy, or store data solely in the performance of its official responsibilities as stated in this MOA, limiting perusal of contents and actions taken to the least necessary to accomplish the task;
- C) Copy or store data or information only with the DSWD-FO V consent and only to complete a specified task, and only to copy and store user data enough to complete the specified task;
- D) Not seek personal benefit or permit others to benefit personally from any data or information that has come to its knowledge;
- E) Not cause to be included in any form, record or report any false, inaccurate or misleading entry pertaining to the Social Pension beneficiary's information system or records;
- F) Not alter or delete or cause to be altered or deleted from any forms, records, report or information system any true and correct entry appearing in the information system and records of the DSWD-FO V;
- G) Not release the Social Pension beneficiaries' data to any third person or entity other than what is required for the completion of its responsibilities stipulated in this MOA, and always with the consent of the DSWD-FO V;



- H) Not exhibit or divulge the contents of any record, file or information system to any person except as required for the completion of its responsibilities stipulated in this MOA;
- I) Take every reasonable precaution to prevent unauthorized access to forms, passwords, user identification, or other information that is used to access the Social Pension beneficiary's database or records;
- J) Limit access to information contained in or obtained from the systems or records of the DSWD-FO V only to authorized person/s; and
- K) Be prohibited from using and accessing personal USB, electronic mail and social networking sites while accessing the Social Pension Database.

### **III. ACCOUNTABILITY**

This agreement shall be implemented as agreed upon in accordance with the terms and conditions stipulated therein. Failure on the part of any party to comply with the provision of this Agreement will warrant its discontinuance and shall give rise to the filing of appropriate administrative and/or criminal actions against responsible officers and employees of the erring party.

### **IV. INTERPRETATION**

- a. The DSWD issuances with regard to SPISC program implementation shall be deemed included in this agreement and the parties shall ensure compliance to all provisions of the issuances.
- b. Any conflict in the provisions of this Agreement and the applicable issuance, the latter shall deem to prevail.
- c. In case of any conflict or gap pertaining to the accounting and auditing processes contemplated in this Agreement, reference shall be made to the pertinent Commission on Audit rules and regulations, which are deemed included in this Agreement.

### **V. DISPUTE RESOLUTION**

Any dispute or disagreement of any kind whatsoever arising from any interpretation, implementation or violation of the terms and conditions of this Agreement shall, as far as practicable, be submitted to, mutual consultation and negotiation. If the Parties fail to amicably resolve a dispute within thirty (30) days of its occurrence, they shall exhaust alternative modes of dispute resolution, such as but not limited to conciliation, mediation and arbitration, before resorting to litigation.

In the event that the Parties herein fail to amicably settle their differences in accordance with the preceding article, and one of the Parties is constrained to seek judicial redress to protect its rights and interest, such legal action shall be brought in the courts of Legazpi City, to the exclusion of all other courts.

## VI. SEPARABILITY

In case any provision hereof or any party thereof be declared void or unenforceable by competent authorities, the provision/s unaffected by such declaration shall remain valid and binding among the parties, their successors and assigns.

## VII. EFFECTIVITY

This agreement shall take effect upon the signing of the parties and shall remain in full force and effect, until the programs contemplated hereunder are fully implemented by the parties, considering the following: (1) the number of physical targets, area of coverage, proposals or requests submitted by the LGU of **PRIETO DIAZ**, and (2) the corresponding applicable periods for the distribution and liquidation; provided that the LGU of **PRIETO DIAZ** shall make full liquidation of the funds transferred by the DSWD-FO V and refund those unutilized or unused funds within the prescribed periods.

IN WITNESS WHEREOF, both parties have signed this instrument on \_\_\_\_\_, 2025, in \_\_\_\_\_, Philippines.

FOR:

**DEPARTMENT OF SOCIAL WELFARE  
AND DEVELOPMENT**

**CITY/MUNICIPAL GOVERNMENT OF  
PRIETO DIAZ**

**NORMAN S. LAURIO**  
Regional Director  
DSWD FO V

**ROMEO D. DOMASIAN**  
City/Municipal Mayor

**Signed in the Presence of:**

**WENDY G. RANCES, CPA**  
Accountant - DSWD FO V

**MARIBEL A. ALDON, CPA**  
City/Municipal Accountant

**VICTORIA C. TAGUM**  
Protective Services Division Chief

  
**BETTY G. ARINES**  
C/MSWDO Department Head

**ACKNOWLEDGEMENT**

REPUBLIC OF THE PHILIPPINES  
\_\_\_\_\_ s.s. }

**BEFORE ME**, a Notary Public for and in the above jurisdiction, this \_\_\_\_\_, day of \_\_\_\_\_, 2025, personally appeared the following individuals:

| Name                     | Competent Evidence of Identity | Date/Place Issued              |
|--------------------------|--------------------------------|--------------------------------|
| NORMAN S. LAURIO         |                                |                                |
| <u>ROMEO D. DOMASIAN</u> | OTC                            | 1-2-2025 Pich-Diaz<br>Sorsogon |

known to me to be the same persons who executed the foregoing **MEMORANDUM OF AGREEMENT**, consisting of Nine (9) pages, including this page and they acknowledged to me that the same are their free and voluntary act and deed.

**WITNESS MY HAND SEAL** on the date and place above written.

Doc. No. \_\_\_\_\_;  
Page No. \_\_\_\_\_;  
Book No. \_\_\_\_\_;  
Series of \_\_\_\_\_.

NOTARY PUBLIC